

**ORDER ON MAIN PETITION:**

This Execution Petition is filed by the Decree Holder for execution of the Award passed by the III Addl. Labour Court, Bangalore merged with order passed by the Hon'ble High Court of Karnataka in W.P.1374/2016.

The petitioner is working as labour under the Judgment Debtors as Booking Clerk on 07.02.2002. He was terminated with effect from 29.11.2014. his termination was challenged by the Decree Holder by filing Reference Petition before the III Addl. Labour Court Bangalore bearing reference NO.29/2015, which came to be dismissed by order dated 28.09.2015. Feeling aggrieved by the order passed by the Labour Court, the Decree Holder has approached Hon'ble High Court of Karnataka by filing W.P.1374/2016. This Petition came to be allowed by the Hon'ble High Court of Karnataka on 25.10.2021, directing the respondents to reinstate the petitioner into service and restore all consequential benefits within 6 months. The Hon'ble High Court of Karnataka has set aside the order passed by III Addl. Labour Court, Bangalore. According to the Decree Holder, the order passed by the Hon'ble High Court of Karnataka merged with Reference No.29/2015 and attained finality. Even after specific order passed by the Hon'ble High Court of Karnataka, the respondents have not obeyed the order passed in W.P.1374/2016. Therefore, he filed the Execution petition, seeking an amount of

₹18,34,205/- from the respondents.

The respondents appeared through their counsels and filed detailed objections to the Execution petition, including the maintainability of the Execution Petition in the present form. In the objection statement, the main contention of the respondents is that the petition is not maintainable as there is no Gazette notification was produced by the Decree Holder as required under 17 of Industrial Dispute Act.

Unless the Award is published in the Official Gazette of either state or Central Government, Execution petition cannot be filed. Hence, they sought to dismiss the Execution Petition. During the pendency of the Execution Petition, since there was dispute regarding the memo of calculation and age of the petitioner, both are parties directed by the Court to file memo of calculation and produce the age proof of the Decree Holder. Accordingly, they produced the memo of calculation and age proof document.

I heard the arguments of learned counsel for the Decree Holder and the Judgment Debtor. The Judgment Debtor also filed written arguments and along with judgment of Hon'ble Supreme Court of India in M/s.

Haryana Suraj Malting Limited V/s.  
Phoolchand.

The following points arise for my consideration:

**Point No.1:** Whether the Execution Petition is maintainable in the present form?

**Point No.2:** What order?

My answer to the above points as follows;

**Point No.1:** In affirmative.

**Point No.2:** As per final order for the following;

### **REASONS**

**Point No.1:** The Decree Holder has produced the Award passed by the III Addl. Labour Court, Bangalore. In the operative portion, the court has observed that the Reference Petition is dismissed and directed the office to send a copy of Award to the Government for due publication and also issued direction to the Government to publish the Award in Official Gazette within 30 days. The Court also specifically stated that the Award shall become enforceable on expiry of 30 days from the date of its publication under Section 17 of ID Act. The Appeal provision is made to Hon'ble High Court of Karnataka. Accordingly, the Decree Holder has filed the W.P.1374/2016 which

came to be allowed by setting aside the Award passed by III Addl. Labour Court, Bangalore and also directed the respondent Nos.1 and 2 to reinstate the petitioner and pay the consequential benefits within 6 months from the date of receipt of copy of the order.

Whenever the Award passed by the Appellate or Higher Courts, it is merged with the order of the trial Court. Therefore it is deemed that as soon as the order passed in the W.P.1374/2016 on 25.10.2021, it is the responsibility of the concerned Court and Government to publish the modified Award passed by the Hon'ble High Court of Karnataka in the official Gazette. The main objection of the Judgment Debtor is that the office has raised objections at the time of filing execution petition stating that the copy of Gazette was not furnished by the Decree Holder. Based on this objection raised by the office and also by referring the mandatory provisions of Section 17 of ID Act, the Judgment Debtors contended that Execution Petition is not maintainable without producing the Gazette notification.

At the time of filing the Execution Petition, the age of Decree Holder is more than 60 years and he was terminated from the service. He was poor fellow and no one

can expect from such person to move post and pillars to get his legitimate money from the respondents. The technical cannot come in the way of rendering the justice. In view of specific order passed by the Labour Court, it is deemed that the Award is published by the State Government in the Official Gazette. Hence, I answer **point NO.1 in affirmative.**

**Point No.2:** Now the second question raised by the Judgment Debtors during the argument is that the Decree Holder cannot be reinstated, because the age of retirement is 60 years. The Decree Holder has produced his Aadhar card, attested copy of Transfer Certificate. Wherein, the date of birth of Decree Holder is mentioned as 10.12.1958, the date of superannuation of the Decree Holder is on 31.12.2018.

After 1<sup>st</sup> January of 2019, the petitioner is not entitled for reinstatement, because he has crossed the age of 60 years. But, as per the order passed by the Hon'ble High Court of Karnataka, he is entitled for the statutory benefits. Both parties have admitted the fact that the last pay drawn by the Decree Holder is ₹7,375/-. The increments payable to the Decree Holder is also not disputed. For the year-2014, the increment is ₹735/- and total monthly salary is ₹8,110/-. The

annual salary is ₹97,350/-. For the year-2015, the last salary is ₹8,110/- and increment is ₹811/-. The monthly salary is ₹8,921/- and annual salary is ₹1,07,052/-. For the year-2016, his salary is ₹8,921/- and increment is ₹973/-, the monthly salary is ₹9,894/- and annual salary is ₹1,18,728/-. For the year-2017, the monthly salary is ₹9,894/- and increment is ₹989/-, the annual salary payable to the Decree Holder is ₹1,30,596/-. For the superannuation year, i.e., 2018, the monthly salary of Decree Holder is ₹10,883/- and increment is ₹1,088/- and monthly salary is ₹11,971/-. The annual salary of the Decree Holder is ₹1,43,652/-.

If the statutory benefits calculated from 2014 to 2018, it comes to ₹5,97,378/-. The memo of calculation arrived by the Decree Holder is upto the year-2023, which is the wrong calculation, because the Decree Holder has to superannuate in the year-2018. Thereafter, he is not entitled for any back-wages. Similarly, the Judgment Debtors calculated the salary and gratuity upto the year-2016 which is also wrong, based on the Aadhar card of the Decree Holder.

The Decree Holder is entitled to ₹5,97,378/- + gratuity and bonus amount of

**Ex.3000/2023**

₹79,930/- + ₹26,870/-, in all the petitioner is entitled for ₹7,04,178/-. The memo of calculations filed by both Decree Holder and Judgment Debtor are wrong and they are rejected. For the foregoing reasons, I pass the following;

**ORDER**

The petition is maintainable and the Judgment Debtors are directed to deposit an amount of ₹7,04,178/- towards full and final settlement of Execution petition within 15 days.

Call on 18-10-2025.

**(J. V. KULKARNI)**

**XXXV A.C.C.&.S.J., Bengaluru.**